

This **Agreement** is made on the date set out in Item 1 of the Schedule

Between



(1) The company whose name appears in Item 2 of the Schedule (the Company)

And

The University of Auckland

(2) The company whose name appears in Item 3 of the Schedule (the Service Provider).

Introduction

- A. The Company wishes to appoint the Service Provider to carry out certain services and the Service Provider has agreed to accept such appointment.
- B. The parties wish to record the terms and conditions upon which the Services will be carried out.
- C. The Service Provider has appointed its wholly-owned subsidiary, Auckland UniServices Limited (UniServices), as its agent to procure and enter into agreements on the Service Provider's behalf in relation to the performance of these types of services.

It is agreed

1. Interpretation

1.1 In this Agreement, unless the context otherwise requires:

Agreement means this Service Provider Agreement including the Schedule.

Algorithm means a set of code created under the Services for an inventory management solution.

Data Outputs means the output of the Algorithm in the form of lists of raw product recommendations (inventory choices) for an iteration of product orders.



Documentation means details of the algorithm processes (but not the code) and processing environment.

Confidential Information of a party (**Disclosing Party**) means all information that is about the Disclosing Party, its Affiliates, or its or its Affiliates' affairs, or obtained by the other party (**Recipient**) directly or indirectly from the Disclosing Party or its Affiliates in connection with this Agreement, and includes the terms and conditions of this Agreement, but excludes information:

- (a) which is or becomes public knowledge, other than as a result of any fault of the Recipient or its permitted disclosees;
- (b) developed independently of this Agreement and any information of the Disclosing Party; or received by the Recipient from a third party without restriction and without any breach of any obligation of confidentiality.

Data Outputs means the output of the Algorithm in the form of lists of raw product recommendations (inventory choices) for each iteration of product orders.

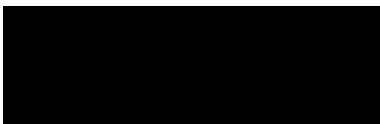
Documentation means details of the algorithm processes (but not the code) and processing environment.

Improvement means any improvement, development, enhancement, modification or derivative of any product, design, process or Intellectual Property Right that cannot be used independently of such product, design, process or Intellectual Property Right;

Intellectual Property Rights means all intellectual property rights conferred by law and includes the rights to, and any interests in, any patent, trade mark, service mark, copyright, moral right, trade name, brand name, logo, corporate dress, right to use, domain name, social media presence, handle and account, technical information, right in computer software, databases and lists, right in inventions, right in a design, know-how, trade secret, confidential information and any other proprietary right or form of intellectual property rights (whether or not registered or capable of registration), and the right to register, renew or extend any of the foregoing rights;

Pre-existing IP means the Intellectual Property Rights that a party makes available to the other party under this Agreement which existed prior to the Commencement Date or which were created independently to the performance of this Agreement, and in the case of the Service Provider's Pre-existing IP, includes any Improvements to those Intellectual Property Rights;

Services means the services to be performed by the Service Provider as described in Item 4 of the Schedule; and



Working Day means a day on which businesses and banks in Auckland are generally open for business.

1.2 In this Agreement:

- (a) clause and other headings are for ease of reference only and will not be deemed to form any part of the context or to affect the interpretation of this Agreement; and
- (b) words importing the singular include the plural and vice versa.

2. Appointment and term

2.1 The Service Provider's appointment will commence on the date specified in Item 6 of the Schedule and, subject to clauses 2.6 and 9, will terminate on the date specified in Item 7 of the Schedule without the need for either party to give the other party any notice.

2.2 The Service Provider will be responsible for:

- (a) its own liability for all taxes, payments, and levies under any relevant legislation including the Income Tax Act 2007 and all accident compensation legislation;
- (b) registering for GST and complying with the Goods and Services Tax Act 1985 and all GST requirements;
- (c) all other liabilities and expenses of whatever nature relating to the Service Provider.

The Service Provider indemnifies the Company against all such taxes, levies, insurance premiums and other expenses.

2.3 The parties agree that the Service Provider's Key Personnel defined in Item 10 of the Schedule, are the person(s) to provide the Services on behalf of the Service Provider. Any variation to the Service Provider's Key Personnel must be approved in writing by the Company. Either party may terminate this Agreement on notice to the other party if the parties fail to agree a replacement Key Personnel within 30 days of the Company's receipt of the Service Provider's notice under this clause 2.3.

2.4 The Service Provider will perform the Services and will not incur any obligations on behalf of the Company without the Company's prior written consent.



- 2.5 The parties acknowledge that the Service Provider is not in partnership, joint venture, or integrated into the business of the Company and is in business on the Service Provider's own account.
- 2.6 If the parties agree that the Service Provider's appointment will continue after the date specified in Item 7 of the Schedule, both parties' authorised representatives defined in Item 2 and Item 3 should be notified.

3. Obligations of the Service Provider

- 3.1 The Service Provider will:
- (a) perform the Services on the terms set out in this Agreement with due care, skill and diligence and in a timely and professional manner;
 - (b) provide the Company with such information, and prepare such reports, in relation to the Services as the Company may reasonably require as outlined in the Schedule;
 - (c) give priority to the Company's requirements in the carrying out of the Services;
 - (d) may, with the prior written consent of the Company, engage a nominated sub-Service Provider provided they are suitably skilled to perform the Services and are beforehand approved by the Company to carry out any part of the Services but, in such event, will take full responsibility for all aspects of the sub-Service Provider's performance, remuneration and compliance with the terms of this agreement and of any relevant legislation or regulations;
 - (e) comply with the Health and Safety at Work Act 2015, and any health and safety procedures of the Company and of any site where the Services are being carried out;
 - (f) not do anything to prejudice the good name of the Company in any dealings with third parties including clients/customers;
 - (g) at its own cost, make good any errors or omissions in the Services of which the Company notifies the Service Provider in writing during the term of this Agreement; and

- (h) notify the Company of any interest the Service Provider may have which conflicts with the Company's interests immediately on becoming aware of such conflict.
- 3.2 The Service Provider warrants that the Services will meet the quality standards and specifications set out in Item 4 of the Schedule, within the timetable (if any) set out in Item 4 of the Schedule.
- 3.3 The Service Provider agrees that this Agreement does not in any way prevent, restrict or limit the Company from engaging other persons to provide the same or similar services and that no claim shall lie against the Company should the Company exercise such rights.

4. Obligations of the Company

- 4.1 The Company will pay the Service Provider for the Services the fees and expenses set out in Item 5 of the Schedule at the times and in the manner set out in clause 6 and Item 5 of the Schedule on receipt of an itemised GST invoice from the Service Provider. The Company shall make all necessary withholding tax deductions from the charges payable to the Service Provider unless this is not required, or the Service Provider supplies the Company with a Certificate of Exemption.
- 4.2 The Company will co-operate with the Service Provider and will provide the Service Provider with all information in its possession which may be relevant to the provision of the Services.

5. Progress meetings

- 5.1 During the term of this Agreement, the parties will hold progress meetings for the purpose of allowing the Company and the Service Provider to discuss the performance of the Services. These meetings will be held at such times and locations as the Company may reasonably require.

6. Payment

- 6.1 If any invoice submitted by the Service Provider is disputed by the Company, the Company will notify the Service Provider of the reasons for the dispute but will otherwise pay that part of the invoice which is not disputed. Any disputed amount will be resolved in accordance with clause 10.



- 6.2 The Service Provider will be responsible for all expenses incurred in the carrying out of the Services unless as otherwise listed in the Schedule.

7. Intellectual Property & Confidential information

- 7.1 The Service Provider acknowledges the strict confidentiality and proprietary nature of all Confidential Information and that no right, entitlement or interest in the Confidential Information is extended to or conveyed to the Service Provider other than for the strict purpose of performing the Services. The Service Provider also acknowledges that the Service Provider may become aware of or be given Confidential Information which the Company has invested considerable time and cost in obtaining and developing for the purposes of its business. The Service Provider agrees that any breach of its obligations of confidentiality in this Agreement would cause the Company to suffer serious and irreparable loss and damage for which damages would not be an adequate remedy, and in the event of any threatened, apparent or actual breach of this Agreement, the Company is entitled to seek immediate injunctive relief.
- 7.2 The Service Provider undertakes that it will:
- (a) only use the Confidential Information for the purpose of performing the Services, and will not use, or attempt to use, in any way the Confidential Information for its own purposes or the purposes of any third party;
 - (b) keep all of the Confidential Information confidential;
 - (c) except as provided under clause 7.2(e), not, without the prior written consent of the Company, disclose in any form, the whole or any part of the Confidential Information to any third person;
 - (d) at the request of the Company, and in any event on the termination of this Agreement, promptly return to the Company all documents and other material relating to the Confidential Information and all copies of those items;
 - (e) only disclose the Confidential Information to its employees (if any) directly involved with the Service Provider in the fulfilment of the Service Provider's obligations under this Agreement, and/or to legal or accounting advisers for the purpose of providing to the Service Provider legal or accounting advice in relation to this Agreement, and in each case the Service Provider will ensure that such employees and advisers are aware of, and comply with, these obligations as to confidentiality; and

- 7.3 The obligations of confidentiality set out in clauses 7.1 and 7.2 will not apply to any information which:
- (a) the Service Provider can clearly show was independently available to the Service Provider from a third party having the right to disclose it;
 - (b) at the time of execution of this Agreement is in the public domain, or subsequently enters the public domain, through no fault of the Service Provider or any other person the Service Provider has disclosed the information to or who has obtained access to the information (whether directly or indirectly) through the acts or omissions of the Service Provider;
 - (c) the Service Provider can show by written record is in the Service Provider's lawful possession and was not obtained by the Service Provider from the Company;
 - (d) is independently developed by the Service Provider without reference to the Company's Confidential Information; or
 - (e) the parties agree in writing will be exempted from the confidentiality provisions of this Agreement.
- 7.4 If the Service Provider is required by law or an order of a court of competent jurisdiction or any competent judicial, governmental or regulatory body to disclose any Confidential Information, the Service Provider must:
- (a) first inform the Company of this obligation;
 - (b) allow the Company reasonable time to avoid the disclosure having to be made;
 - (c) give the Company such assistance (at the Company's cost) as the Company reasonably requests in doing this; and
 - (d) only disclose such Confidential Information to the minimum extent required.
- 7.5 Each party acknowledges the strict confidentiality and proprietary nature of the other's Pre-existing IP and that no right, entitlement or interest in a party's Pre-existing IP is extended to or conveyed to the other party, except as expressly stated in this Agreement.
- 7.6 Each party acknowledges that anything created under this Agreement which is an Improvement to a party's Pre-existing IP is and will be owned by that party owning the

relevant Pre-existing IP. At the intended owner's cost, each party will do all things and sign all instruments reasonably required to give effect to this clause 7.6.

- 7.7 All Data Outputs will be owned by and the exclusive property of the Company, and the Service Provider will assign any and all of the Service Provider's rights, title and interest in and to the Data Outputs to the Company.
- 7.8 The Algorithm and any models used in relation to the Services will be owned by the Service Provider.
- 7.9 The Company will grant the Service Provider a non-exclusive, royalty free license during the term of this Agreement to use, copy, modify, enhance and sub-license any Pre-existing IP of the Company to the extent that such use, copying, modification, enhancement or sub-licensing is required to enable the Service Provider to perform the Services.
- 7.10 The Service Provider warrants that, to the best of the Service Provider's knowledge and belief, the Created Materials will not contain any code or other materials that may infringe the Intellectual Property Rights of any third party.
- 7.11 The obligations of confidentiality imposed upon the Service Provider will continue indefinitely notwithstanding termination of this Agreement.

8. Non-solicitation / Non-dealing

- 8.1 Subject to clause 8.2, the Service Provider is free to undertake any work of any nature, whether as an employee or as an independent Service Provider, provided that the Service Provider continues to carry out the Services and comply with its obligations under this Agreement. The Service Provider acknowledges the terms of clause 7 of this Agreement apply when undertaking work for anyone other than the Company. Where the Company has given an exclusive commitment to a client it will advise the Service Provider of this. Where the Service Provider is carrying out work which would be in conflict with that commitment it will advise the Company of this and the Company may discontinue the Service Provider's involvement with such client's work.
- 8.2 The Service Provider shall not during the term of this Agreement and for the period of time set out in Item 9 of the Schedule following the date of termination of the Agreement either directly or indirectly for itself or on behalf of or in conjunction with any other person:

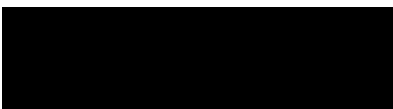


- (a) solicit or entice any employees or Service Providers of the Company to terminate their employment or engagement with the Company, provided that this clause will not prevent the Service Provider from employing an employee of the Company that has responded without solicitation or enticement to a general employment advertisement placed by the Service Provider; and
- (b) solicit, entice, accept the custom of, provide services to (whether as an employee or Service Provider) or deal with, any person, firm, organisation or company to which the Service Provider has provided services under the terms of this Agreement and where such person, firm, organisation or company remains a client of the Company; and
- (c) Whether as an employee or Service Provider or in any capacity, solicit, entice, accept the custom of, provide services to or deal with any client of the Company or provide services to or deal with any strategic partner of the Company or for any company or organisation in which the Company has a financial interest, whether the Service Provider has provided services to that client or company or organisation during the term of the Agreement or not. "Any client" includes anyone who has been a client of the Company in the 24 months immediately preceding the date of termination of this Agreement and that the Service Provider has engaged with through the performance of Services for the Company.

9. Termination

9.1 The Company may terminate this Agreement:

- (a) at any time during its term upon giving the notice set out in Item 8 of the Schedule, in writing to the Service Provider;
- (b) immediately by written notice if the Service Provider is in breach of clause 7 or if there is any other serious breach of this Agreement;
- (c) immediately by written notice if the Service Provider is carrying out work which is in conflict with any commitment made by the Company to a client as contemplated in clause 8.1, the Company has discontinued the Service Provider's involvement with such client's work and no other work is being carried out by the Service Provider for the Company;
- (d) if the Service Provider breaches any other term of this Agreement and fails to remedy the breach within 10 Working Days of receipt of notice from the Company requiring the breach to be remedied; or



- (e) if the Service Provider becomes bankrupt, goes or is put into liquidation, has a receiver or statutory manager appointed of any of its assets, becomes insolvent, ceases to carry on its business or makes any composition or arrangement with its creditors.

9.2 The Service Provider may terminate this Agreement:

- (a) at any time during its term upon giving the notice set out in Item 8 in the Schedule in writing to the Company; or
- (b) if the Company breaches any other term of this Agreement and fails to remedy the breach within 10 Working Days of receipt of notice from the Service Provider requiring the breach to be remedied; or
- (c) if the Company becomes bankrupt, goes or is put into liquidation, has a receiver or statutory manager appointed of any of its assets, becomes insolvent, ceases to carry on its business or makes any composition or arrangement with its creditors.

9.3 If this Agreement is terminated for any reason, the Service Provider will refund to the Company, within 2 Working Days following termination, any amount paid by the Company to the Service Provider pursuant to this Agreement in relation to Services that have not been performed prior to termination.

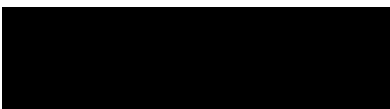
9.4 Termination of this Agreement will be without prejudice to the rights and obligations of the parties prior to termination and to any of the provisions of this Agreement which are expressed to survive termination.

9.5 On termination of this agreement both parties will immediately return to the other all documents, records, reports or other material, in paper or electronic form.

10. Disputes

10.1 If a dispute arises out of or relates to this Agreement (the **Dispute**) a party to the Agreement may not commence any court or arbitration proceedings relating to the Dispute unless it has complied with the following paragraphs of this clause except where the party seeks urgent interlocutory relief.

10.2 A party claiming the Dispute has arisen under or in relation to this Agreement must give written notice to the other party specifying the nature of the Dispute.



- 10.3 On receipt of that notice, the parties will use all reasonable endeavours to resolve the Dispute by discussion, consultation, negotiation, or other informal means.
- 10.4 If the Dispute is not resolved within 15 Working Days of the notice being given pursuant to clause 10.2 (or within such further period agreed in writing by the parties) either party may seek resolution of the dispute by whatever means available at law.

11. Liability

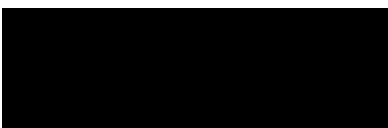
- 11.1 The maximum aggregate liability of the Service Provider to the Company under or in connection with this Agreement is limited to an amount equal to the total amount paid by the Company to the Service Provider under this Agreement up to the date of the first event giving rise to liability.
- 11.2 The Service Provider will not be liable to the Company under or in connection with this Agreement for any loss of profit, revenue, savings, business or goodwill, or for any consequential, indirect, incidental or special damage or loss of any kind.
- 11.3 The Company acknowledges that UniServices acts in respect of this Agreement solely as agent for the Service Provider. To the extent permitted by law, UniServices will not be liable to the Company for damage or loss of any kind in connection with this Agreement, the Services or the Results, whether in contract, tort (including negligence), breach of statutory duty or otherwise.

12. Publicity

- 12.1 Neither party may use the names, logos or trade marks of the other party, its Affiliates or it or its Affiliates' personnel in any publicity or marketing without the other party's prior written consent (and which, in the case of consent from the Service Provider, may be withdrawn at any time).

13. General

- 13.1 Any notice to be given in terms of this Agreement must be made in writing, by email or by post to the postal address, or by delivery to the registered office, of the other party or to such other address as may be notified by either party to the other from time to time. Any communication by email will be deemed to be received when transmitted to the correct email address of the recipient. Any other communication in writing will be deemed to be received when left at the registered office of the Company or if posted to the postal address, on the third day following the date of posting. The initial, email,



postal, and physical registered office addresses of the Company and the Service Provider are set out in Items 2 and 3 of the Schedule.

- 13.2 No waiver of any breach of this Agreement will be deemed to be a waiver of any other or any subsequent breach. The failure of any party to enforce any provision of this Agreement will not be interpreted as a waiver of the provision.
- 13.3 This Agreement, constitutes the entire agreement between the parties and supersedes all previous negotiations, commitments and/or writings, provided that, where a confidentiality agreement has previously been signed by the parties, that confidentiality agreement will continue in full force and effect, except to the extent of any inconsistency with this Agreement.
- 13.4 No alteration of this Agreement will be binding unless it is in writing and executed by both parties.
- 13.5 The Service Provider may not assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the Company.
- 13.6 If any provision of this Agreement is invalid or unenforceable, the remaining provisions of this Agreement will not be affected and will continue in full force.
- 13.7 This Agreement may be executed by the parties in counterparts, each of which will be deemed to be an original and all of which will constitute one and the same agreement.
- 13.8 This Agreement is subject to the laws of New Zealand and the parties submit to the exclusive jurisdiction of the New Zealand courts. In addition to any other rights and remedies available to the Company for breach of this Agreement, the Company will be entitled to enforcement by court injunction or restraining order.

